

SENATE No. 2936

The Commonwealth of Massachusetts

—
In the One Hundred and Ninety-Fourth General Court
(2025-2026)
—

SENATE, February 9, 2026.

The committee on Election Laws to whom was referred the petition (accompanied by bill, Senate, No. 534) of Rebecca L. Rausch and Joanne M. Comerford for legislation to upgrade elections infrastructure, improve voting access, and reduce municipal burden, report the accompanying bill (Senate, No. 2936).

For the committee,
John F. Keenan

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(2025-2026)**

An Act upgrading elections infrastructure, improving voting access, and reducing municipal burden.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 10 of said chapter 51, as so appearing, is hereby amended by
2 striking out, in lines 20, 21, 32, and 38, the word “thirty-fifth” each time it appears and inserting
3 in place thereof, in each instance, the following word:- forty-second.

4 SECTION 2. Section 26 of said chapter 51, as so appearing, is hereby amended by
5 striking out, in line 1, the words “forty-two H” and inserting in place thereof the following
6 word:- 42H.

7 SECTION 3. Said section 26 in said chapter 51, as so appearing, is hereby further
8 amended by striking out, in lines 8 and 9, the words “thirty-four and fifty” and inserting in place
9 thereof the following words: 34 and 50.

10 SECTION 4. Said section 26 in said chapter 51, as so appearing, is hereby further
11 amended by striking out, in line 14, the words “forty-two G” and inserting in place thereof the
12 following words:- 42G.

SECTION 5. Section 44 of said chapter 51, as so appearing, is hereby amended, in line 7, by inserting after the words “voter registration” the following words:- . A person registering as a voter may, at the same time, establish their status as a permanent mail voter, as provided in section 25B of chapter 54, by indicating their desire to elect such status on the affidavit of voter registration.

SECTION 6. Said chapter 51, as so appearing, is hereby amended by striking out section 47C and inserting in place thereof the following section:-

Section 47C. (a) The secretary of state shall maintain a central registry of voters in accordance with this section.

(b) Information contained in the central registry shall be provided by the registrars or equivalent in the commonwealth’s cities and towns.

(c) The central registry shall contain, without limitation, the following information about each registered voter in the commonwealth: (1) full name; (2) former name, if any; (3) residential address; (4) date of birth; (5) political party enrollment or designation; and (6) effective date of registration.

(d) The central registry may contain, without limitation, the following information about residents of the commonwealth age 16 and over: (1) full name; (2) former name, if any; (3) residential address on January first in the current year; (4) residential address on January first in the preceding year; (5) date of birth; (6) occupation; (7) veteran status; and (8) nationality, if not a citizen of the United States, for street list purposes only.

(e) The central registry shall be digitally maintained using the most advanced applicable technology reasonably available to the state secretary.

(f) The information contained in the central registry pursuant to paragraph (c) shall be:

- (1) available to state party committees, statewide candidate committees, state ballot question committees, the jury commissioner, adjutant general and any other individual, agency or entity that the state secretary shall designate by regulation consistent with the purposes of this section, at a fair and reasonable cost not to exceed the cost of printing in hard copy, if requested, or issuing computer-readable data files; and
- (2) provided by the state secretary to the election officials at each polling place in the commonwealth in digital format sufficient to allow for designated election officials to conduct real-time searches of the registry and to modify a voter's registration information upon presentation by the voter of appropriate documentation to justify the modification. The names and addresses contained in the central registry shall not be a matter of public record.

(g) The state secretary shall use all reasonable efforts to secure federal funding to maintain the central registry consistent with the provisions of this section and provide its information as required in paragraph (f).

(h) The state secretary shall maintain an agreement with the Electronic Registration Information Center, Inc., or such other system that the Secretary may deem appropriate, on behalf of the commonwealth that shall specify the terms and conditions of the commonwealth's membership in the Center. The agreement shall include terms providing for the periodic sharing of data between the central registry, the registry of motor vehicles and any other automatic voter

registration agency as designated by the secretary, and the Center, including, but not limited to, voter names and addresses.

(i) The state secretary shall adopt regulations governing the operation of the central registry consistent with the provisions of this section.

SECTION 7. Section 60 of said chapter 51, as so appearing, is hereby amended by adding at the end thereof the following sentence:- An electronic voting list may be used as the primary voting list by a city or town clerk and at a ward, voting precinct, polling place or town for any preliminary, primary or election; provided, however, that a paper copy of a voting list may be used as a primary or duplicate list; and provided further, that the city or town clerk shall have sole discretion over the format of the voting list used.

SECTION 8. Section 65 of said chapter 51, as so appearing, is hereby amended by striking out subparagraph (3) of paragraph (d) and inserting in place thereof the following paragraph:-

(3) The registrars shall notify each person under paragraph (1) of the person's opportunity to: (i) decline to register to vote; (ii) adopt a political party affiliation, in which case the person shall also sign an eligibility requirement acknowledgement and attestation; and (iii) become a permanent mail voter as provided in section 25B of chapter 54. Such notification shall be provided in English and Spanish and any additional languages to be determined by the state secretary. The registrars shall include with such notification a postage guaranteed permanent mail voter status request form, as provided in section 25B of chapter 54.

SECTION 9. Section 28 of chapter 53 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the first paragraph and inserting in place thereof the following paragraph:-

State primaries shall be held on the second Tuesday in June in even-numbered years and on the fourth Tuesday preceding special state elections, except that primaries before special elections for senator or representative in congress shall be held on the sixth Tuesday preceding said elections. If a religious holiday falls on or immediately before the second Tuesday in June in an even-numbered year, the state primary shall be held on a date set by the general court within seven days of the second Tuesday in June. The state secretary shall publish the date of the state primary not later than February 1 of each even-numbered year by: (i) providing notice of the date to the state parties; (ii) filing notice with the state publications and regulations division; (iii) posting the information on the website of the state secretary; and (iv) any other means necessary to ensure proper notification. Presidential primaries shall be held on the first Tuesday in March in any year in which presidential electors are to be elected. Notwithstanding any provision of law to the contrary, any town may hold its preliminary or regular town elections on the same date designated as the date to hold a presidential primary, in any year in which presidential electors are to be elected, or a state primary, in any even-numbered year, provided that such election is by a ballot independent of the ballot used for a presidential primary or state primary. City and town primaries before all city and town elections shall be held on the 28th day preceding such elections.

SECTION 10. Section 33 of said chapter 53, as so appearing, is hereby amended by adding, in line 3, after the word “printed” the following words:- . If a color has come to be

generally known or associated with a political party, the secretary shall use the associated color for the party's primary ballots.

SECTION 11. Section 24 of chapter 54 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the word "aldermen" each time it appears and inserting in place thereof, in each instance, the following words:- city council.

SECTION 12. Said section 24 of said chapter 54, as so appearing, is hereby further amended by striking out the word "selectmen" each time it appears and inserting in place thereof, in each instance, the following words:- select board or town council.

SECTION 13. Section 25B of said chapter 54, as so appearing, is hereby amended by striking out, in line 24, the words "during the calendar year" and inserting in place thereof the following words:- for a single calendar year or permanently. Any qualified voter may become a permanent mail voter by: (i) filing with the state secretary a permanent mail voter status request in a form prescribed by the secretary and made available in paper and electronic formats; (ii) indicating their request to establish permanent mail voter status on an affidavit of registration as provided in section 44 of chapter 51; or (iii) opting into permanent mail voter status using the secure online portal provided by the state secretary pursuant to this section. A permanent mail voter who is not enrolled in a political party shall select their desired political party primary ballot at the time permanent mail voter status is selected; provided, however, that a permanent mail voter may request a different political party primary ballot for an upcoming election using the secure online portal provided by the state secretary pursuant to paragraph (6); and provided further, that the secretary shall prescribe a form and manner for submission of a paper request

that may be used by a permanent mail voter who is not enrolled in a political party to select a different political party primary ballot for an upcoming election.

SECTION 14. Said section 25B of chapter 54, as so appearing, is hereby further amended in paragraph (a)(6) by striking out, in lines 92-96, the words “request that the ballot be mailed to the voter’s home address, or a different mailing address as designated by the voter, or provided electronically if the voter is approved to utilize an accessible electronic ballot as an accommodation under paragraph (4)” and inserting in place thereof the following words:- : (i) establish and terminate their status as a permanent mail voter; (ii) indicate whether the voter would like to vote by mail for preliminaries, primaries or elections, or any combination thereof; (iii) indicate that the voter would like to vote by mail in a single preliminary, primary or election only; (iv) select a desired political party primary ballot, if the voter is not enrolled in a political party; and (v) specify or change the physical address to which the ballot shall be mailed or indicate the ballot should be provided electronically if the voter is approved to utilize an accessible electronic ballot as an accommodation under paragraph (4).

SECTION 15. Said section 25B of said chapter 54, as so appearing, is hereby further amended in paragraph (a)(7)(i) by striking out, in line 109, the words “or (B)” and inserting in place thereof the following words:- (B) each annual or special municipal or state primary or election for which they remain qualified to vote; or (C).

SECTION 16. Said section 25B of said chapter 54, as so appearing, is hereby further amended by striking out, in line 111, the word “need” and inserting in place thereof the following word:- shall.

138 SECTION 17. Said section 25B of said chapter 54, as so appearing, is hereby further
139 amended by adding, in line 111, after the word “to” the following words:- (A) a voter who is a
140 permanent mail voter; (B) a voter who indicated they do not want to vote by mail, for the
141 duration of that indication; or (C).

142 SECTION 18. Said section 25B of said chapter 54, as so appearing, is hereby further
143 amended in paragraph (a)(7)(ii) by striking out, in line 120, the words “and (E)” and inserting in
144 place thereof the following words:- (E) allow a voter to select permanent mail voter status, mail
145 voter status for a single calendar year, or mail voting for preliminaries, primaries or elections, or
146 any combination thereof; (F) indicate that the voter does not want to vote by mail for a period of
147 not less than one nor more than four years; and (G).

148 SECTION 19. Said section 25B of said chapter 54, as so appearing, is hereby further
149 amended by striking out, in line 153, the words “appropriate local election officials” and
150 inserting in place thereof the following words:- state secretary.

151 SECTION 20. Said section 25B of said chapter 54, as so appearing, is hereby further
152 amended by adding, in line 156, after the word “ballot;” the following word:- and.

153 SECTION 21. Said section 25B of said chapter 54, as so appearing, is hereby further
154 amended by striking out, in line 156, the word “inner”.

155 SECTION 22. Said section 25B of said chapter 54, as so appearing, is hereby further
156 amended by striking out, in line 156, the words “; and (iv) an outer envelope that is pre addressed
157 to” and inserting in place thereof the following words:- , as well as the address of.

SECTION 23. Said section 25B of said chapter 54, as so appearing, is hereby further amended by striking out, in line 161, the word “outer”.

SECTION 24. Said section 25B of said chapter 54, as so appearing, is hereby further amended in paragraph (a)(13) by striking out the second paragraph and inserting in place thereof the following paragraph:-

All early voting ballots delivered in person to the office of the city or town clerk, returned to a secured municipal drop box for the city or town where the voter is registered or returned electronically pursuant to the accommodations granted to a voter by reason of disability under paragraph (4) shall be received by the city or town clerk before the hour fixed for closing the polls on the day of a preliminary, primary or election. All early voting ballots submitted by mail shall be mailed by the voter on or before the day of a preliminary, primary or election and accepted until 5:00 p.m. on the seventh day thereafter, and shall be processed in accordance with section 95. A postmark, if legible, shall be evidence of the time of mailing.

SECTION 25. Said section 25B of said chapter 54, as so appearing, is hereby further amended by striking out lines 192 to 205, inclusive, and inserting in place thereof the following paragraph:-

(14) Upon receipt of a completed early voting ballot, the local election official shall examine the completion of the affidavit on the envelope containing the ballot. If the affidavit has been improperly executed or does not sufficiently indicate that the ballot was marked and mailed or delivered as required by this section, the local election official shall mark across the face thereof “Rejected as defective” and shall notify the voter and send the voter a new ballot. If the affidavit has been properly executed, the local election official shall record the date of receipt.

SECTION 26. Said section 25B of said chapter 54, as so appearing, is hereby further amended in subsection (a) by inserting the following new paragraphs:-

(15) The secretary shall maintain a public facing website for the confirmation of receipt and acceptance of early voting ballots. The website shall automatically update based on data inputted into the voter registration information system by local election officials. An early voting ballot properly received pursuant to paragraph (14) shall be identified as “received” on the website. An early voting ballot submitted into a tabulator without issue shall be identified as “accepted” on the website.

(16) A voter may terminate their status as a permanent mail voter at any time by: (i) filing with the state secretary a permanent mail voter termination request in a form prescribed by the secretary and made available in paper and electronic formats; or (ii) so indicating using the secure online portal provided by the state secretary pursuant to paragraph (6).

(17) Not later than January 25 in a year in which a presidential primary is held and not later than April 25 in other even numbered years, the state secretary shall cause to be issued to every permanent mail voter who submitted an email address to the state secretary an email message containing a reminder to voters to reverify their mail voting information, including but not limited to the address or addresses to which a voter’s ballots should be sent and the requested party primary ballot, in the case of voters who are not enrolled in a political party. The email message shall include a link to the portal provided by the state secretary pursuant to paragraph (6).

(18) Each municipality shall maintain at least 1 secured municipal ballot drop box in a public location that is accessible to voters for not less than 12 hours each day, including business

hours. A municipality with more than 25,000 registered voters shall maintain at least 1 secured municipal ballot drop box for each 25,000 registered voters during any voting by mail period. Locations for municipal ballot drop boxes shall be selected by the city or town clerk to prioritize, to the extent feasible: (i) proximity to public transportation and availability of parking; (ii) equitable distribution across population centers; (iii) access for persons with disabilities; and (iv) use of public buildings. A municipality shall maintain such ballot drop boxes from the earliest date that ballots become available to voters through the hour fixed for the closing of the polls for any annual or special municipal or state primary or election. A municipality with fewer than 5,000 registered voters in excess of any 25,000 registered voter increment may apply to the state secretary for waiver of the requirement to maintain an additional secured municipal ballot drop box for such population. The state secretary shall grant a waiver application made under this paragraph upon a determination that the waiver would serve the public interest.

SECTION 27. Said section 25B of said chapter 54, as so appearing, is hereby further amended by adding, in line 289, after the word “registrars” the following words:- . A digital list shall satisfy the requirements of this paragraph.

SECTION 28. Said section 25B of said chapter 54, as so appearing, is hereby further amended by striking out, in lines 294-295, the words “and an envelope containing an affidavit, which shall include a notice of penalties under section 26 of chapter 56”.

SECTION 29. Said section 25B of said chapter 54, as so appearing, is hereby further amended by striking out paragraph (b)(8) and inserting in place thereof the following paragraph:-
(8) Upon marking their early voting ballot, the voter shall deposit the ballot into a tabulator.

223 SECTION 30. Said section 25B of said chapter 54, as so appearing, is hereby further
224 amended by striking out paragraph (c)(5) and inserting in place thereof the following paragraph:-
225 (5) A voter voting early in person under this subsection shall be provided with a ballot and, upon
226 marking their early voting ballot, the voter shall deposit the ballot into a tabulator.

227 SECTION 31. Said section 25B of said chapter 54, as so appearing, is hereby further
228 amended by adding, in line 338, after the word “secretary” the following words:- . A paper list
229 may be required to be printed only on the first day of early voting.

230 SECTION 32. Said section 25B of said chapter 54, as so appearing, is hereby further
231 amended by adding, in line 342, after the word “death” the following words:- or move to a
232 different residence within the commonwealth.

233 SECTION 33. Said section 25B of said chapter 54, as so appearing, is hereby further
234 amended by striking out, in line 362, the words “deliver to each city and town” and inserting in
235 place thereof the following word:- prepare.

236 SECTION 34. Said section 25B of said chapter 54, as so appearing, is hereby further
237 amended by striking out, in line 369, the words “on their reverse”.

238 SECTION 35. Said section 25B of said chapter 54, as so appearing, is hereby further
239 amended by striking out, in line 370, the words “; (iii) return envelopes, pre-addressed to” and
240 inserting in place thereof the following words:- and the address of.

241 SECTION 36. Said section 25B of said chapter 54, as so appearing, is hereby further
242 amended by striking out, in line 372, the figure “(iv)” and inserting in place thereof the following
243 figure:- (iii).

SECTION 37. Said section 25B of said chapter 54, as so appearing, is hereby further amended by adding, in line 378, after the word “tabulator” the following words:- upon receipt or at any other time.

SECTION 38. Said section 25B of said chapter 54, as so appearing, is hereby further amended by adding at the end thereof the following subsection:-

(1)(1) Not later than February 1 in each even numbered year, the commonwealth shall pay to each city and town an amount sufficient to defray 80 per cent of the costs imposed on the city or town under the provisions of this section in each even numbered year, including but not limited to: (i) additional personnel hired to staff early in person voting; (ii) overtime for hourly municipal personnel working outside their normal business hours to staff early in person voting, set up or take down early voting polling locations, process early voting by mail ballots, input data in the voter registration information system, or perform other essential functions related to the operation of a preliminary, primary or election; and (iii) the cost of voting booths, privacy screens, high speed tabulators, voter accessibility machines, and other technology essential to the operation of a preliminary, primary or election.

(2) Not later than February 1 in each odd numbered year, the state auditor shall determine the costs attributed to this section for each city and town during the 3 preceding even numbered years and deliver to the state secretary, the chairs of the joint committee on election laws, the chairs of the house and senate committees on ways and means, and the clerks of the house and senate a report stating the total costs for the 3 preceding even numbered years for each city and town in the commonwealth, the three-cycle average for each city and town, 80 per cent of that average, any anticipated total cost increases in the next even numbered year election cycle, and

266 the data giving rise to those calculations; provided, that the data may be contained in a digital
267 appendix. The state secretary shall include in his budget recommendations for the then-next
268 fiscal year a request for an appropriation in an amount equal to the total estimated municipal
269 costs. The secretary shall distribute to each city or town two disbursements of any such
270 appropriated funds: an initial disbursement consistent with the provisions of paragraph (1); and a
271 subsequent disbursement for the remainder of the costs incurred by each city or town. Funds so
272 distributed to each city or town shall be deposited into the elections operations or other similar
273 fund of the city or town and shall be expended without further appropriation by the city or town
274 to satisfy the costs incurred by it under the provisions of this chapter.

275 SECTION 39. Section 43 of said chapter 54, as so appearing, is hereby amended by
276 striking out, in line 2, the word “surnames” and inserting in place thereof the following word:-
277 names.

278 SECTION 40. Section 72 of said chapter 54, as so appearing, is hereby amended by
279 striking out, in line 3, the word “shall” and inserting in place thereof the following word:- may.

280 SECTION 41. Section 95 of said chapter 54, as so appearing, is hereby amended by
281 adding, in line 2, after the word “tabulator” the following words:- upon receipt or at any other
282 time.

283 SECTION 42. Said section 95 of said chapter 54, as so appearing, is hereby further
284 amended by adding, in line 35, after the word “the” the following words:- tabulator or.

285 SECTION 43. Said chapter 54, as so appearing, is hereby amended by adding, after
286 section 95, the following new section:-

Section 95A. Notwithstanding any general or special law to the contrary, city and town clerks shall be permitted to remove early voting by mail ballots from their envelopes and deposit the ballots into a tabulator or ballot box on any day upon which the ballots are timely received, including but not limited to days prior to the close of the voter registration period.

SECTION 44. Section 105 of chapter 54 of the General Laws, appearing in the 2022 Official Edition, is hereby amended in line 40 by striking out the word “central” and inserting in place thereof the following words:- “centralized digital”.

Said section 105 in said chapter 54, as so appearing, is hereby further amended in line 40 by striking out the word “facilities” and inserting in place thereof the following word:- “facility”.

Said section 105 in said chapter 54, as so appearing, is hereby further amended in line 41 by striking out the word “ or” and inserting in place thereof the following:- “,”.

Said section 105 in said chapter 54, as so appearing, is hereby further amended in line 41 by adding after the word “telegraph, ” the following words:- “or secure data transmission,”.

Said section 105 in said chapter 54, as so appearing, is hereby further amended in line 44 by adding after the word “completed.” the following words:- “The secretary shall post on the website of the secretary the vote cast for candidates upon receipt and include.”.

SECTION 45. Said chapter 54, as so appearing, is hereby amended by adding, after section 162, the following new sections:-

Section 163. The state secretary’s name, photograph, likeness, or other personal information shall not be used in any polling place or on any printed voting materials or election information, including but not limited to materials about measures and questions submitted to

308 voters consistent with sections 52, 53 and 54 of this chapter, except to be listed on ballots as a
309 candidate for office.

310 Section 164. Not later than May 1 of every even numbered year, the state secretary shall,
311 subject to funding, conduct comprehensive, culturally competent, and linguistically diverse voter
312 education outreach, both digitally and in paper copy. The voter education information contained
313 in the outreach program shall be updated to reflect any recent changes in elections laws or
314 implementation.

315 SECTION 46. Not later than December 31, 2025, the state secretary shall approve and
316 implement upgrades to the central registry and the voter registration information system and
317 approve and authorize the usage of electronic poll books. The upgraded voter registration
318 information system shall ensure that all voting methods, including early voting by mail, early
319 voting in person, and absentee voting, can be tracked together.

320 SECTION 47. There shall be a special commission to examine the automatic voter
321 registration processes of the commonwealth, including the processes implemented via the
322 registry of motor vehicles. The commission shall be comprised of the following members: the
323 president of the Massachusetts town clerks association, or their designee, who shall serve as
324 chair; the secretary of the commonwealth, or their designee; the registrar of motor vehicles, or
325 their designee; the chairs of the joint committee on election laws, or their respective designees;
326 the executive director of common cause Massachusetts; the elections and voting legislative
327 specialists of the league of women voters of Massachusetts; 2 members appointed by the senate
328 president, 1 of whom shall represent a voting rights advocacy organization; 2 members appointed
329 by the speaker of the house of representatives, 1 of whom shall be a city clerk in the

commonwealth; and not more than 3 additional members to be appointed by the chair. Not later than April 15, 2026, the commission shall issue a report containing its findings about automatic voter registration process improvements, including but not limited to any recommended legislative changes, to the house and senate committees on ways and means, the chairs of the joint committee on election laws and the clerks of the house and senate. The secretary shall publish the report on his website.

SECTION 48. Not later than June 30, 2026, the state secretary shall mail to all registered voters at their residential addresses, or mailing addresses if different from their residential addresses listed in the central registry of voters, a permanent mail voter status request form as provided in section 25B of chapter 54 of the General Laws. The mailing shall: (i) include clear instructions for completing and returning the application; (ii) allow a voter to designate the mailing address to which their ballots shall be sent; and (iii) be pre-addressed to the local election official with postage guaranteed.